

IN THE UNITED STATES DISTRICT COURT FOR THE
SOUTHERN DISTRICT OF TEXAS
LAREDO DIVISION

LUIS MEDINA

Plaintiff,

Civil Action No. _____

VS.

UNITED STATES OF AMERICA,
Defendant.

PLAINTIFF'S ORIGINAL COMPLAINT

TO THE HONORABLE JUDGE OF SAID COURT:

NOW COMES, LUIS MEDINA, hereinafter called Plaintiff, complaining of and about United States of America, hereinafter called Defendant, and for cause of action shows unto the Court the following:

I. PARTIES

1. Plaintiff, LUIS MEDINA, is an Individual residing in Webb County, Texas.
2. Defendant, the United States of America, may be served by serving acting United States Attorney United States Attorney Jennifer Lowery at 1000 Louisiana Street, Ste 2300, Houston, TX 77002. Service will be made via email, USATXS.CivilNotice@usdoj.gov and by mail.

II. JURISDICTION

3. The Court has jurisdiction over the lawsuit under 28 U.S.C. §1346(b) because the suit involves a claim against a federal agency of the United States for personal injury caused by the negligent and/or wrongful act or omission of a government employee while acting within the scope of his employment.

III. VENUE

4. Venue is proper in this district under 28 U.S.C. §1402(b) because the act and/or omission complained of occurred in the Southern District of Texas.

IV. CONDITIONS PRECEDENT

5. Plaintiff timely presented this claim in writing to U.S. Customs and Border Protection.

V. FACTS

6. On October 11, 2019, LUIS MEDINA, sustained injuries and damages when his vehicle was struck by a vehicle owned by U.S. Customs and Border Protection and driven by a U.S. Customs and Border Protection's employee acting in the course and scope of employment.

7. On said date, Plaintiff vehicle was traveling westbound on W. Bob Bullock Loop, when U.S. Customs and Border Protection's employee, Ariana Marie Gutierrez, while traveling on IH 35 failed to yield the right of way at a red signal light collided into Plaintiff's vehicle. Plaintiff sustained serious injuries as a result of the collision.

VI. CAUSES OF ACTION UNDER THE FEDERAL TORT CLAIMS ACT

8. Ariana Marie Gutierrez's acts and/or omissions complained of constituted negligence.

9. Ariana Marie Gutierrez was an employee of Defendant, United States of America, and was acting in the course and scope of her office or employment and had a duty to exercise ordinary care and operate the motor-driven equipment reasonably and prudently. Plaintiff's injuries were proximately caused by Ariana Marie Gutierrez's negligent, careless and reckless regard of said duty. Specifically, Ariana Marie Gutierrez failed to disregard a red signal and collided into Plaintiff's vehicle.

10. Under the laws of the State of Texas, a private person would be liable to Plaintiff for the act and/or admissions described above. Under 28 U.S.C. §2674, the United States is liable to Plaintiffs for their damages in the same manner and to the same extent as a private individual

under like circumstances under the common and statutory laws of Texas for the negligent acts committed.

VII. DAMAGES

11. As a direct and proximate result of defendant's negligence, Plaintiff suffered the following injuries and damages:

- a. Physical pain and mental anguish in the past and future;
- b. Lost earnings;
- c. Loss of earning capacity;
- d. Disfigurement in the past and future;
- e. Physical impairment in the past and future;
- f. Medical expenses in the past and future;
- g. Loss of consortium in the past and future;
- h. Loss of household services in the past and future; and
- i. Property Damage.

VIII. JURY DEMAND

12. Plaintiff's assert their rights under the Seventh Amendment to the U.S. Constitution and demands, in accordance with Federal Rule of Civil Procedure 38, a trial by jury on all issues.

PRAYER

WHEREFORE, PREMISES CONSIDERED, Plaintiff, LUIS MEDINA, respectfully prays that the Defendant be cited to appear and answer herein, and that upon a final hearing of the cause, judgment be entered for the Plaintiffs against Defendant for damages in an amount within the jurisdictional limits of the Court; exemplary damages, excluding interest, together with pre-judgment interest (from the date of injury through the date of judgment) at the

maximum rate allowed by law; post-judgment interest at the legal rate, costs of court; and such other and further relief to which the Plaintiff may be entitled at law or in equity.

Respectfully submitted,

By: /s/ Joseph Monahan
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Federal Bar No.31582

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